

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rita Bobe-Saleh	Team: Team # 3	CCRB Case #: 200917187	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 10/31/2009 7:53 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/30/2011	Precinct: 40		
Date/Time CV Reported Sun, 11/01/2009 4:43 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/06/2009 1:27 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonmichea Dolce	27646	945673	BX IRT
2. POM Matthew Mccoy	11117	947238	BX IRT
3. SGT Scott Burton	00728	920063	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Wendelyn Constanza	08342	947905	BX IRT
2. POM Joshua Valdez	15354	947565	BX IRT
3. POM Raymond Sette	05987	947484	BX IRT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonmichea Dolce	Discourtesy: PO Jonmicheal Dolce spoke obscenely to § 87(2)(b)	A . Unsubstantiated
B . POM Jonmichea Dolce	Force: PO Jonmicheal Dolce used physical force against § 87(2)(b)	B . Exonerated
C . POM Matthew Mccoy	Force: PO Matthew Mccoy used physical force against § 87(2)(b)	C . Exonerated
D . POM Jonmichea Dolce	Force: PO Jonmicheal Dolce struck § 87(2)(b) with a radio.	D . Unfounded
E . SGT Scott Burton	Abuse: Sgt. Scott Burton threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 1, 2009, § 87(2)(b) filed this complaint on behalf of his brother, § 87(2)(b) to which he was not a witness, with IAB, under log #09-55365 (encl. 14-19). It was received at the CCRB on November 6, 2009 (encl. 27-28). On October 31, 2009, Officers Matthew McCoy and Jonmicheal Dolce of Patrol Borough Bronx Impact conducted a vertical at § 87(2)(b) in the Bronx. During the vertical, the officers observed § 87(2)(b) smoking marijuana. The following allegations resulted from their interaction:

Allegation A: PO Jonmicheal Dolce spoke obscenely to § 87(2)(b)

Allegation E: Sgt. Scott Burton threatened to use force against § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations A and E** be **Unsubstantiated**.

Allegation B: PO Jonmicheal Dolce used physical force against § 87(2)(b)

Allegation C: PO Matthew McCoy used physical force against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be **Exonerated**.

Allegation D: PO Jonmicheal Dolce struck § 87(2)(b) with a radio.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **Unfounded**.

§ 87(2)(g), § 87(4-b)

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This case was re-assigned from Inv. Eric Black to Inv. Bobe-Saleh on April 16, 2010.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes.

Statements to Medical Personnel

§ 87(2)(a) PBH §18(6)

IAB Photo Array

On November 1, 2009, IAB presented a photo array to § 87(2)(b) which included his arresting officer, PO Wendelyn Constanza, and the two subject officers he initially interacted with, PO Matthew McCoy and PO Jonmicheal Dolce of Patrol Borough Bronx Impact (encl. 21-23). He identified PO Constanza as being his arresting officer and noted that she was not present during the incident. He was not able to identify the other subject officers.

Photos taken by IAB at § 87(2)(b)

§ 87(2)(a) PBH §18(6)

Statement to Commanding Officer

As per IAB log #09-55369, Capt. Elias Nikas interviewed § 87(2)(b) within the confines of the 40th Precinct, who stated in sum that he ran because he was smoking weed and he was tired of getting locked up (encl. 14-15). § 87(2)(b) complained of pain to his groin area and head and noted that the injuries occurred prior to handcuffing.

Arrest Photo

§ 87(2)(b)'s arrest photo including a full body length photo, revealed a scratch near his left eye (encl. 34).

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on January 26, 2010 (encl. 29-33). On October 31, 2009 at approximately 7:53 p.m., § 87(2)(b) was in the staircase of a building (he believed it to be § 87(2)(b)), smoking marijuana with individuals he knows only as "§ 87(2)(b)", "§ 87(2)(b)", and "§ 87(2)(b)", and his friends were not residents of this building. § 87(2)(b) did not have any contact information for any of these individuals nor did he know their surnames. § 87(2)(b) and § 87(2)(b) were inside the stairwell on the sixth floor. § 87(2)(b) and § 87(2)(b) were in the stairwell on the fourth floor. § 87(2)(b) was in the building for approximately 30 minutes and had just started smoking marijuana when two uniformed police officers entered the stairwell of the sixth floor.

The officers stared at § 87(2)(b). PO1 was described as a skinny white male with a big nose and identified by the investigation as PO Jonmicheal Dolce of Patrol Borough Bronx Impact. PO2 was described as a shorter, slimmer white male and identified by this investigation as PO Matthew McCoy of Patrol Borough Bronx Impact. Both officers appeared to be in their 20's. § 87(2)(b) could not provide any further description of the officers and could not remember their faces. § 87(2)(b) explained that he was "dazed out." PO Dolce told § 87(2)(b) "Drop the L." § 87(2)(b) explained that this meant to drop the marijuana. § 87(2)(b) complied and then walked toward PO Dolce, who stated, "Don't fucking move."

§ 87(2)(b) stopped and PO Dolce grabbed § 87(2)(b)'s arm and searched him. PO Dolce took everything out of § 87(2)(b)'s pockets and put them on the staircase. § 87(2)(b) had a phone, Chapstick, and a lighter. The only marijuana that § 87(2)(b) and § 87(2)(b) had was the marijuana they were smoking.

PO Dolce asked § 87(2)(b) if he lived in the building and he informed him that he did not. PO Dolce asked, "What the fuck are you doing in this building. Don't you know people are getting robbed in this building?" PO Dolce was standing behind § 87(2)(b) and pulled § 87(2)(b)'s arms behind his back. This

caused § 87(2)(b) pain, so, as a reaction, § 87(2)(b) turned his body towards PO Dolce, who responded by punching § 87(2)(b) in the stomach and the ribs. PO McCoy then punched § 87(2)(b) in an unknown location. § 87(2)(b) stated that he was hit many times but could not articulate where or how many times he was hit. § 87(2)(b) was trying to get away from the officers by walking down the steps because they were beating him up.

Between the 4th and 5th floors, both officers stopped him by grabbing onto the hood of his shirt. § 87(2)(b) provided two versions of events. First, § 87(2)(b) stated that he pushed PO Dolce, causing him to fall down a flight of steps. When questioned further, § 87(2)(b) stated that he was in between PO Dolce and PO McCoy and they were beating him, so he tried to block their strikes and attempted to get away when he “bumped” PO Dolce. PO Dolce then grabbed § 87(2)(b) by the front, and PO McCoy jumped on § 87(2)(b)'s back causing all three of them to fall down the steps. PO Dolce landed on his back, § 87(2)(b) landed on PO Dolce, and PO McCoy landed on top of § 87(2)(b) like a “sandwich.”

Once on the ground, PO Dolce grabbed § 87(2)(b)'s arms and pulled them behind his back, placing him in handcuffs. The officers then called for backup. PO Dolce hit § 87(2)(b) in the top, left portion of his head with a walkie-talkie. § 87(2)(b) did not know how many times he was hit in the head because he was dazed. PO Dolce then hit § 87(2)(b) in the genitals with the walkie-talkie five or more times. § 87(2)(b) sustained a head injury which did not require staples or stitches. § 87(2)(b) was bleeding from the genital area and was required to urinate into a bag.

§ 87(2)(b) was lying on the ground of the staircase with his head facing a wall, and his back to the staircase door. When officers arrived they purposefully opened the stairwell door, causing it to hit the back of his head. This happened three times. § 87(2)(b) could not see the officers who did this and received no injury from this action.

An officer lifted § 87(2)(b) from the ground, escorted him down the stairs, and placed him into a police vehicle. There were two different officers in the police vehicle who were transporting § 87(2)(b). § 87(2)(b) asked to go to the hospital and one of the officers, PO3, described as a uniformed, short, stocky white male with green eyes stated, “Shut the fuck up before we beat your ass again.” The investigation identified PO3 as Sgt. Scott Burton and the accompanying officer as PO Raymond Sette, both assigned to the 52nd Precinct.

The officers took § 87(2)(b) to the stationhouse and then he was transported to § 87(2)(b). § 87(2)(b)'s arrest photograph was taken after he was treated at § 87(2)(b) at Central Booking.

§ 87(2)(b) and § 87(2)(b) did not witness the incident because when they heard what was happening, they left the building. § 87(2)(b) was not arrested.

Attempts to Contact Civilians

The investigation could not conduct any database searches to identify the potential witnesses in this case since § 87(2)(b) could not provide any information for them except for their first names. § 87(2)(b) acknowledged that his friends did not reside in the building and that they left the incident once he started interacting with the officers. A check of the Booking Arraignment Disposition System (BADs) revealed no other arrests at this location and/or in connection with this incident.

NYPD Statement(s):

Subject Officer: PO JONMICHAEL DOLCE

- PO Jon-Michael Dolce is a § 87(2)(b) with brown hair and brown eyes.
- On October 31, 2009, PO Dolce worked from 5:30 p.m. to 2:05 a.m. He was in uniform, and assigned to a footpost with PO McCoy.

Memo Book

PO Dolce had the following entries in his memobook with regards to this incident (encl. 35-37): *At 7:51 p.m., a vertical patrol was conducted at § 87(2)(b). At 7:52 p.m., one male was stopped inside of § 87(2)(b). At 7:57 p.m., one individual was arrested § 87(2)(b). At § 87(2)(b) PO Dolce was at § 87(2)(b) with PO McCoy with injuries to the right elbow and hand.*

Aided Report

Aided report #§ 87(2)(b) was completed for PO Dolce (encl. 38-42). The narrative listed the following in verbatim: *“At time and place of occurrence, aided used OC spray on defendant to affect a lawful arrest, while trying to affect lawful arrest, aided fell down the stairs injuring right hand, right elbow while wrestling with perpetrator.”*

CCRB Statement

PO Dolce was interviewed at the CCRB on March 23, 2010 (encl. 43-44). On October 31, 2009, at approximately 7:51 p.m., PO Dolce conducted a vertical patrol at § 87(2)(b) with PO McCoy. PO Dolce took the elevator to the 6th floor. On the sixth floor, PO Dolce observed an individual, who was identified by the investigation as § 87(2)(b) in the stairwell with an unidentified female, smoking a marijuana cigarette. PO Dolce told § 87(2)(b) to drop the marijuana cigarette and § 87(2)(b) tried to conceal it in his hand. PO Dolce told § 87(2)(b) a second time to put down the marijuana cigarette and he complied. PO Dolce did not curse at § 87(2)(b) or say, “Don’t fucking move.”

§ 87(2)(b) walked toward PO Dolce with his hands in the air. PO Dolce instructed § 87(2)(b) to stand up against a wall and conducted a frisk of his waistband to check for weapons. PO Dolce grabbed one of § 87(2)(b)’s hands and tried to pull it behind his back. § 87(2)(b) then pushed off of PO Dolce, punched PO McCoy in the head, and tried to run. PO Dolce grabbed § 87(2)(b) and struggled with him down a set of stairs. PO McCoy called a 10-85 over the radio. § 87(2)(b) tried to push PO Dolce down another set of stairs, but § 87(2)(b) and both officers fell down onto one of the landings. On the landing, the officers were able to get § 87(2)(b)’s hands behind his back and in handcuffs.

PO Dolce stated that he did punch § 87(2)(b) during the struggle, but could not articulate where, and how many times he did so. He did not recall if he punched § 87(2)(b) in the genital area. PO Dolce explained that he punched § 87(2)(b) because § 87(2)(b) had punched him and he was trying to use the necessary force to get him under control. PO Dolce and PO McCoy both carried police radios, but neither officer struck § 87(2)(b) with a radio. When asked how § 87(2)(b) sustained penile trauma, PO Dolce speculated that it occurred during the struggle down the steps. No further force was used against § 87(2)(b) once he was handcuffed.

Additional officers responded once § 87(2)(b) was in police custody. § 87(2)(b) was on the ground near the door at this time and PO Dolce thought it was possible that the door struck him as officers entered the location but that he did not witness any officers open this door with the intention to repeatedly strike § 87(2)(b).

§ 87(2)(b) while he was on the ground. PO Dolce never heard an officer state to § 87(2)(b) “Shut the fuck up before we beat you again.”

PO Dolce and PO McCoy had no further interaction with the unidentified female because she ran away once they started interacting with § 87(2)(b). This female was never frisked or searched.

PO Dolce obtained treatment at § 87(2)(b) directly from the location and was treated for a contusion to his right elbow.

Subject Officer: PO MATTHEW MCCOY

- PO Matthew McCoy is a § 87(2)(b) white male with brown hair and blue eyes.
- PO McCoy worked the same tour as listed above with his partner, PO Dolce.

Memo Book

PO McCoy had the following entries in his memo book with regards to this incident (encl. 45-46): At 7:41 p.m., he conducted a vertical patrol at § 87(2)(b). At 7:52 p.m., PO McCoy had one male stopped inside of § 87(2)(b). At 7:57 p.m., one individual was arrested § 87(2)(b). At § 87(2)(b) PO McCoy went to § 87(2)(b). PO Dolce had injuries to his elbows, hands, and knees. PO McCoy had injuries to his hands, knee, and head.

Aided Worksheet

PO McCoy reported that on October 31, 2010, while affecting an arrest, he fell down steps while wrestling perpetrator and he received contusions/abrasions to the head; both hands and right knee and feels substantial pain (encl. 47-50).

Firearms Discharge/Assault Report

The assault report § 87(2)(b) was completed for PO McCoy (encl. 51-55). The incident narrative listed the following in verbatim: “While trying to effect a lawful arrest, member of service was punched in the forehead, thrown down the stairs and received an abrasion to his right elbow and contusion to his right hand.” The report also noted that pepper-spray was discharged once.

CCRB Statement

PO McCoy was interviewed at the CCRB on February 22, 2010 (encl. 56-58). § 87(2)(g)

PO McCoy observed § 87(2)(b) sitting on the stairs leading to the roof, smoking a marijuana cigarette with an unidentified female sitting behind him. The officers told § 87(2)(b) to stand up and move away from the stairs. § 87(2)(b) complied. PO McCoy asked the female if she lived in the building and asked her to get off of the steps. The female said she did not live in the building. The female had a purse. PO McCoy took the purse from her and was holding it when he heard PO Dolce state, “Why are you flexing on me?” PO McCoy dropped the purse and went to assist PO Dolce. The officers never searched § 87(2)(b) or the female prior to the physical altercation. § 87(2)(b) punched PO McCoy once in the forehead and pushed him down the stairs.

PO McCoy fell down approximately three stairs as PO Dolce continued to struggle and grapple with § 87(2)(b) on the top of the stairs. PO McCoy went back up the stairs and grabbed § 87(2)(b)'s legs.

When falling down the stairs, PO Dolce's firearm came unholstered. All of the individuals landed on the landing on their sides. § 87(2)(b) was able to roll PO Dolce on his back and get on top of him. PO Dolce's firearm was under his body. § 87(2)(b) was able to get on top of PO Dolce on the landing. PO McCoy jumped on § 87(2)(b)'s back and punched him in the side of his head with a closed fist about two times. PO McCoy was trying to get § 87(2)(b) away from his partner and the gun. PO McCoy then pulled § 87(2)(b) off of PO Dolce. § 87(2)(b) still continued to resist, but PO McCoy and PO Dolce were able to get him on the ground and get him into handcuffs. No further force was used against § 87(2)(b) after he was handcuffed. PO McCoy and PO Dolce both carry radios, but no officer struck § 87(2)(b) with a radio. No officer struck § 87(2)(b) with any object and no officer struck § 87(2)(b) in the groin.

The backup officers arrived and PO McCoy and PO Dolce went to § 87(2)(b). PO McCoy did not see any officer hit § 87(2)(b)'s head with the door. The unidentified female ran when § 87(2)(b) began to fight with the officers. PO McCoy never got her name.

PO McCoy sustained contusions and lacerations to his head, knee, and hands. PO McCoy denied that any officer used the expletive fucking or threatened to use force against § 87(2)(b) once he was in custody.

Subject Officer: SGT. SCOTT BURTON

- Sgt. Burton is a § 87(2)(b) white male with brown hair and green eyes.
- Sgt. Burton was assigned as the Impact Sergeant from 5:15 p.m. to 2:12 a.m. His operator was PO Sette, they were both in uniform and assigned to a marked van.

Memo Book

Sgt. Burton had no entries in his memo book with regards to this incident (encl. 59-61).

CCRB Statement

Sgt. Burton was interviewed at the CCRB on April 30, 2010 (encl. 62-63).

On October 31, 2010, at approximately 7:53 p.m., Sgt. Burton responded to the location of incident with regards to a 10-85 call (request for additional assistance). Upon his arrival, he observed § 87(2)(b) lying on the ground handcuffed. § 87(2)(b) had blood on his person but Sgt. Burton did not recall specifically where he saw the blood. A photo of § 87(2)(b) was presented to Sgt. Burton and he did not recognize him. PO McCoy, who was bleeding from his face, was seated, while PO Dolce was standing. § 87(2)(b) was brought up to his feet and escorted to Sgt. Burton's van to be transported back to the 52nd Precinct Stationhouse. § 87(2)(b) had no difficulty walking to the van. Sgt. Burton did not recall if any additional officers were present in the van with him and PO Sette.

Officers Dolce and McCoy informed Sgt. Burton that they had observed § 87(2)(b) with a lit marijuana cigarette. As they approached him, § 87(2)(b) struck one of the officers, and they all fell down the stairs. The officers did not provide Sgt. Burton with a more detailed narrative with regards to the incident nor did they explain what kind of force was used against § 87(2)(b) to take him into custody.

§ 87(2)(b) had no verbal interaction with Sgt. Burton. Sgt. Burton did not recall if PO Sette spoke with § 87(2)(b). He did not recall if § 87(2)(b) complained of any pain during his transport. Sgt. Burton denied that § 87(2)(b) complained of being struck with a radio. Sgt. Burton was present at the scene for ten minutes, during which time PO McCoy was taken by ambulance to a hospital for treatment. Sgt. Burton recalled that an ambulance transported § 87(2)(b) to the hospital from the stationhouse, but he had no knowledge of the extent of § 87(2)(b)'s injuries nor did he have any further interaction with him from that time on. Sgt. Burton denied threatening to use force and speaking obscenely to § 87(2)(b).

Witness Officer: PO RAYMOND SETTE

- PO Sette is a § 87(2)(b), white male with brown hair and hazel eyes.
- He worked the same assignment as listed for Sgt. Burton as his operator.

Memo Book

PO Sette had the following entries in verbatim in his memo book regarding this incident (encl. 64-65):
1959- 85 at § 87(2)(b), 2000-10- 84, 2005- Transport perp back to 40 Precinct.

CCRB Statement

PO Sette was interviewed at the CCRB on May 6, 2010 (encl. 66-67). § 87(2)(g)

Upon their arrival to the building, they found two separate staircases and separated to locate the right one leading to the incident location. PO Sette took the wrong staircase. Upon his arrival, he observed § 87(2)(b) being guided down the stairs in handcuffs. He did not appear to have any difficulty walking.

§ 87(2)(b) appeared to be upset and was screaming. PO Sette did not recall any specific statements he made to the officers. PO Sette did not recall if Sgt. Burton made any statements to § 87(2)(b) in the van utilizing any expletives or threat of force nor did he recall making those statements.

Witness Officers: PO WENDELYN CONSTANZA and PO JOSHUA VALDEZ

- PO Constanza is a § 87(2)(b), Hispanic female with black hair and brown eyes.
- PO Valdez is a § 87(2)(b), Hispanic male with black hair and brown eyes.
- PO Constanza and PO Valdez worked together, and were assigned to a foot post. They were both in uniform.

Arrest Report

PO Constanza completed the complaint and arrest reports for § 87(2)(b) (encl. 71-74). The following was noted in verbatim in the narrative: *“At time and place of occurrence, arresting officer was informed by PO McCoy and PO Dolce that they did observe defendant in the above location smoking a marijuana cigarette in public view. When approached, defendant did strike PO McCoy with a closed fist causing a laceration to the forehead. Defendant then refused to be cuffed by punching, kicking, and flaring arms. Defendant was inside building without permission and does not reside in the above location.”* § 87(2)(b) was charged with § 87(2)(b)

§ 87(2)(b). Physical force was listed as being used against § 87(2)(b) to overcome assault.

CCRB Statements

PO Constanza was interviewed at the CCRB on April 7, 2010 and PO Veldez was interviewed on April 30, 2010 (encl. 75-78). § 87(2)(g)
§ 87(2)(b). PO Constanza’s sole role in the incident was to process the arrest at the stationhouse.

Medical Records

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

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§ 87(2)(a) PBH §18(6)

NYPD Documents

SPRINT #§ 87(2)(b) (Encl. 114-119)

At 7:45 p.m. a footpost unit at § 87(2)(b), which was conducting a vertical, requested additional police assistance at the 5th stairwell. At 7:50 p.m., the same footpost requested additional units. Sectors 40A, 40G, and the Impact Sergeant responded. At 7:51 p.m., an ambulance was requested for an injured member of service. At 7:54 p.m. an arrest was made, and at 7:57 p.m., two officers were transported to the hospital for minor injuries.

Command Log

The 40th Precinct Command log has § 87(2)(b)'s arrest logged in at 8:05 p.m. and PO Constanza as his arresting officer (encl. 120). § 87(2)(b)'s physical appearance was listed as apparently normal but a side notation listed that he was transported by EMS to § 87(2)(b) at 8:50 p.m.

Roll Call

On October 31, 2009, Sgt. Burton, PO Sette, PO Constanza, PO McCoy, and PO Dolce were assigned to tour 3 duties at the 52nd Precinct (encl. 121-122).

Arrest for Incident and Disposition (Encl. 123-127)

- § 87(2)(b) [REDACTED] [REDACTED] [REDACTED]
[REDACTED] [REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] have not filed a Notice of Claim with the City of New York as of March 25, 2010 with regard to the incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

[REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED]

■ [REDACTED]
[REDACTED].

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] (encl. 9-10).

Subject Officers CCRB History

- PO Dolce and PO McCoy have been members of the service for two years and there are no substantiated CCRB allegations against them (encl. 6-7).
- Sgt. Burton has been a member of the service for 12 years and there are no substantiated CCRB allegations against him (encl. 8).

Conclusion

Allegations not Pleaded

§ 87(2)(g)

Identification of Subject Officers

- PO McCoy and PO Dolce both acknowledged interacting with § 87(2)(b)
- Based on the officers' statements, PO Sette and Sgt. Burton acknowledged transporting § 87(2)(b) to the stationhouse. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: PO Jonmicheal Dolce spoke obscenely to § 87(2)(b)

Allegation E: Sgt. Scott Burton threatened to use force against § 87(2)(b)

§ 87(2)(b) alleged that upon complying with PO Dolce's directive to drop the marijuana cigarette, he began walking towards PO Dolce, who allegedly stated to him, "Don't fucking move." Later, PO Dolce allegedly stated, "What the fuck are you doing in this building? Don't you know people are getting robbed in this building?" § 87(2)(b) also alleged that while being transported to the stationhouse, Sgt. Burton allegedly stated to him, "Shut the fuck up before we beat your ass again."

PO Dolce and Sgt. Burton denied speaking obscenely to § 87(2)(b) and Sgt. Burton denied threatening to use force against § 87(2)(b) at any time during his interaction with him. PO Sette and PO McCoy denied witnessing their partners use any expletives when interacting with § 87(2)(b) § 87(2)(g)

As such, it is recommended that **Allegations A and E** be **Unsubstantiated**.

Allegation B: PO Jonmicheal Dolce used physical force against § 87(2)(b)

Allegation C: PO Matthew McCoy used physical force against § 87(2)(b)

According to Patrol Guide Procedure 203-11 (encl. 1-2), "*Only that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody.*" § 87(2)(g)

[illegible]

recommended that **Allegations B** and **C** be **Exonerated**.

Allegation D: PO Jonmicheal Dolce struck § 87(2)(b) with a radio.

§ 87(2)(b) alleged that once he was handcuffed, the officers requested additional officers to the scene, and PO Dolce proceeded to strike him in the top left portion of his head an unknown number of times (he was dazed) with the radio. PO Dolce then struck § 87(2)(b) five or more times with the radio in the penis causing his injuries. PO Dolce denied ever striking § 87(2)(b) with his radio and PO McCoy denied witnessing such actions.

§ 87(2)(g)

[REDACTED]

[REDACTED]. It is therefore recommended that **Allegation D** be **Unfounded**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[Redacted text block]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date